

The posture of this case is different. It was plaintiffs' motion for summary adjudication that was recently at issue, not any motion by defendant. Accordingly, the scope of the ruling on that motion was simply that plaintiffs were not entitled to judgment on their causes of action for quiet title or declaratory and injunctive relief, or on certain "affirmative defenses." Based on the limited application of that holding, defendant is incorrect that allowing amendment here would undermine the summary adjudication process by relitigating issues already decided. (See Opposition, 11:14-28.)

The Court does not find the sort of prejudice here that warrants a departure from the general rule in favor of permitting amendment.

As to defendant's argument that the motion should be denied because the conduct described in the SAC is subject to an anti-SLAPP motion to strike, the Court declines to deny the motion on that basis which, in any event, is not immediately apparent from the opposition papers. Consideration of the substantive merits should be addressed in future proceedings. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["we believe that the better course of action would have been to allow [the plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"].)

5. 9:00 AM CASE NUMBER: C23-03064
CASE NAME: REIMAGINE CONSULTING VS. GS AND F PLANTS, INC
***HEARING ON MOTION IN RE: TRANSFER ACTION FOR COORDINATION UNDER CCP 403**
FILED BY: REIMAGINE CONSULTING
TENTATIVE RULING:

Introduction

Plaintiff Reimagine Consulting ("Reimagine") moves for an order to transfer *GS and F Plants, Inc. vs. Lee, et. al.*, (San Bernardino County Superior Court Case No. CIVSB2435845) (the "**San Bernardino Action**") to the above-entitled court for coordination with the above-entitled action. The motion is made on the grounds that the actions involve a common question of fact and law within the meaning of Code of Civil Procedure section 404, meet the standards for coordination specified in Code of Civil Procedure section 404.1, are not complex actions as defined by the Judicial Council, and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action.

For the reasons set forth below, Plaintiff's Motion to Transfer for Coordination is GRANTED.

Statement of Facts

Contra Costa Action

This case involves a breach of written contract. On October 12, 2022, Plaintiff and Defendants entered into a purchase agreement (the "Agreement") whereby, Plaintiff agreed to purchase a Natural Gas Generator (the "Generator") in exchange for a purchase price of \$1,000,000.00 USD. The Agreement called for four (4) separate payments. (Hayes Decl. Ex. 2, SAC ¶ 11.) First, Plaintiff paid the initial payment of \$100,000.00 upon signing of the Agreement (the "Initial Payment"). (Id.) Second,

upon Delivery of the Generator to Plaintiff's facility, Plaintiff owed an "Inspection Payment" of \$300,000.00. (Id.) Third, upon proper installation and energization of the Generator, Plaintiff would owe an "Operational Payment" of \$300,000.00. (Id.) Lastly, within twelve (12) months of obtaining "all necessary government permits", Plaintiff would owe the last payment of \$300,000.00. (Id.)

The Agreement required the Defendants to source the parts, install and energize the Generator. (Id at ¶ 14, and Ex. A.) However, following the Inspection Payment, it became clear that the Generator was missing critical parts to operate. (Id at ¶ 16.) To date, Plaintiff alleges that Defendants have failed to properly install the Generator. (Hayes Decl. ¶ 11.) Yet, to date, Plaintiff has spent a total of \$921,069.86, not including legal fees and related costs, for a Generator that is still not installed and energized. (Hayes Decl. ¶ 12.)

The Agreement was conditioned upon Reimagine obtaining approval and permits for the installation of the Generator from the City of Richmond and the California Air Resources Board. (See Hayes Decl. ¶ 13, Ex. 2, Ex. A, ¶ 9.) In the event, Buyer was unable to obtain the necessary permit from the CA Air Resources Board, then the Generator and equipment was to be returned to the Defendants, and all payments made to date would need to be returned to Plaintiff. (Id.) On or about October 19, 2022, the CA Air Resources Board notified Reimagine that the Generator could not be permitted. (Id.)

San Bernardino Action

In the **San Bernardino Action**, it is contended that on or around October 12, 2022, Defendant JAMES LEE, ("LEE"), as officer of REIMAGINE, and on behalf of REIMAGINE, falsely and fraudulently represented to Hingchung Chong ("Chong"), officer of GS&F, that REIMAGINE will pay \$1 million to acquire the Generator from GS&F, with payments to be made in four installments: first installment and initial deposit in the sum of \$100,000, second installment in the sum of \$300,000 to be paid after delivery of the Generator and inspection in seven days after delivery, third installments in the sum of \$300,000 to be paid after demonstrating the Generator can provide 1400 KW with 480 volts, ("Specification"), and the fourth installments in the sum of \$300,000 to be paid in the 12 months after the Generator is shown to meet the Specification; that REIMAGINE shall be responsible for all costs, including parts, material, and labor for site preparation and electrical connection; that Defendants shall take prompt and necessary actions to attain permits from regulatory agencies, within two months from the date of delivery of the Generator, in order for the Generator to be turned on, and that if the Generator does not prove to be operational, REIMAGINE shall return the Generator to GS&F for refund. (Hayes Decl, Ex. 3, ¶ 15.)

Plaintiff GS&F alleges that the representation made by LEE was in fact false. The true facts were that LEE used the foregoing representation to induce GS&F to deliver the Generator without intention to make the promised \$1 million dollar payments, after GS&F delivered the Generator on October 18, 2022, and REIMAGINE accepted the Generator after inspection on or around October 19, 2022. (Hayes Decl, Ex. 3, ¶ 15.)

When Defendant LEE made these representations, Defendant knew them to be false, and these representations were made by Defendant with the intent to defraud and deceive Plaintiff and with the intent to induce Plaintiff to act in the manner herein alleged. (Hayes Decl, Ex. 3, ¶ 17.)

Plaintiff, at the time these representations were made by Defendant LEE and at the time Plaintiff took

the actions herein alleged, was ignorant of the falsity of Defendants' representations and believed them to be true. In reliance on these representations, Plaintiff delivered the Generator to Defendant's site, assisted the installation and necessary connections, Defendants inspected the Generator with no issues, and Plaintiff was ready to demonstrate its operation meets the agreed requirement. However, Defendants refused to attain permit, refused to remit the third and the fourth payments, and refused to return the Generator to GS&F. Had Plaintiff known the facts, Plaintiff would not have taken such action. Plaintiff's reliance on defendant's representations was justified because the aforesaid arrangement is common commercial practice. (Hayes Decl, Ex. 3, ¶ 18.)

Procedural Background

Contra Costa Action

On December 4, 2023, Plaintiff Reimagine, filed in this Court, a Complaint against Defendants' GS and F Plants, Inc., Hin-Shing Chong, Henry Chong, Henson Chong, Ethan Li, and Does 1 through 20 inclusive, stating causes of action for: (1) Breach of Written Contract, (2) Breach of the Covenant of Good Faith & Fair Dealing, (3) Intentional Misrepresentation, (4) Negligent Misrepresentation, (5) Fraud in the Inducement (False Promise), (6) Unfair Business Practices (Cal. Code Civ. Proc. § 17200), and (7) Rescission (Cal. Civ. Code § 1689). (Hayes Decl. ¶¶ 9-10, Ex. 2.)

On March 4, 2024, GS & F Plants, Inc. filed a Motion to Transfer Venue. On June 27, 2024, the Court issued a detailed order explaining why venue was proper in Contra Costa County. (See Hayes Decl. ¶ 13.) On July 11, 2024, Attorney Chen for GS & F Plants filed and served a Petition for Writ of Mandate and/or Prohibition or Other Appropriate Relief to challenge the Court's venue order. (Id.) On July 18, 2024, without hearing any argument or considering any further briefings, the Court of Appeal summarily denied the writ. (Id.)

On June 14, 2024, Plaintiff, Reimagine, filed a First Amended Complaint ("FAC"). Defendants filed a demurrer to the FAC which was sustained, and this court granted Plaintiff the opportunity to file a Second Amended Complaint. (Hayes Decl. ¶¶ 9-10, Ex. 2.) On December 17, 2024, Plaintiff filed their Second Amended Complaint ("SAC") which identifies the exact same parties and causes of action. (Id.)

On or about April 9, 2025, Defendants and Cross Complainant, GS and F Plants, Inc., filed a Cross-Complaint for damages and restitution against Cross-Defendants Reimagine Consulting, James Lee, Green Richmond LLC, Tony Wei Tong Tom, 100 W Ohio LLC, and ROES 1 through 20 inclusive, stating causes of action for: (1) Conversion, (2) Rescission and Restitution, and (3) Reformation. (See Hayes Decl. ¶ 15.)

San Bernardino Action

On December 9, 2024, GS and F Plants, Inc., as the Plaintiff, filed a second lawsuit, Case No. CIVSB2435845, in San Bernardino Court, naming as Defendant's Reimagine Consulting and James Lee, stating causes of action for: (1) Fraud and Deceit, (2) Breach of Written Contract, and (3) Violation of Cal. Bus. & Prof. Code § 17200. On or about June 6, 2025, Defendants filed their Answer to Plaintiff's Complaint. This San Bernardino case was filed by the same Defendants named in the Contra Costa case, is based on the same Agreement entered by the Parties. (Hayes Decl. ¶¶ 16-17, Ex. 3.)

On March 28, 2025, Defendants, Reimagine Consulting and James Lee, filed a Motion to Stay the

Action and Transfer Venue to Contra Costa County court. (Hayes Decl. ¶ 18.) The hearing was scheduled for May 20, 2025, where the Court ultimately denied the Motion based upon the fact that venue could be considered proper in San Bernardino because the contractual payments were to be made to the Plaintiff, GS and F Plants, Inc., who is headquartered in San Bernardino County. (Id.)

Legal Standard for Transfer and Coordination

Under Code of Civil Procedure section 403, a court may transfer an action pending in another county for coordination with an action involving a common question of fact or law, provided the actions are noncomplex, the moving party has made a good-faith effort to obtain agreement, and the standards of Section 404.1 are met. Coordination is not governed by venue statutes, and a prior venue ruling does not preclude coordination. (*Keenan v. Superior Court* (1980) 111 Cal.App.3d 336, 340–42.)

Section 404.1 directs the Court to consider whether coordination will promote the ends of justice by evaluating, among other things:

- (1) whether common questions of fact or law predominate;
- (2) the convenience of parties, witnesses, and counsel;
- (3) the relative development of the actions;
- (4) the efficient utilization of judicial facilities and manpower;
- (5) the avoidance of duplicative or inconsistent rulings; and
- (6) the likelihood of settlement if coordination is denied. (CCP § 404.1.)

Coordination does not require identical causes of action or identical remedies. It is sufficient that common factual or legal issues are significant and central to the litigation. (*Keenan*, supra, 111 Cal.App.3d pp. 340-342.)

Analysis

Neither Action is Complex

These matters involve straightforward commercial claims arising from a single transaction between a limited number of parties. They do not present novel legal issues, an unmanageable number of witnesses, or the need for extraordinary judicial supervision. They are therefore noncomplex actions suitable for coordination under Section 403 and Rule 3.400 of the California Rules of Court.

Plaintiff Satisfied the Good-Faith Requirement

Plaintiff made repeated good-faith efforts to obtain Defendant's agreement to coordination before filing the Motion. Defendant refused. Plaintiff has therefore satisfied the statutory requirement of a good-faith effort to obtain agreement. (See Hayes Decl. ¶¶ 4-8 and Ex. 1; CCP § 403.)

Code of Civil Procedure Section 404.1 Factors

1. Common Question of Fact or Law

Plaintiff convincingly argues that both cases are based on allegations stemming from a 2022 written

Agreement concerning the purchase and installation of a Generator under the Agreement between the Buyer, Reimagine Consulting and its President James Lee, and Seller, GS and F Plants, Inc. and its CEO Hanson Chong. (Motion at p. 6: 16-19.)

It is Reimagine's position that Defendants breached the Agreement by not delivering a properly working Generator, failing to remedy issues relating to the missing parts required for the Generator to operate, and that Defendants misrepresented to Plaintiff that they had the acumen, ability, knowledge, business know-how, and access to hardware to expeditiously install and energize the Generator. In the San Bernardino case, it is GS and F Plants, Inc. who alleges that Reimagine failed to provide the full \$1 million purchase price of the Generator to GS and F Plants, Inc. (Motion at p. 6: 20-26.)

While the one breach of contract is written and the other oral, they do not diminish the significant, predominating commonalities between the cases. The cases arise out of the same underlying transaction. The facts surrounding the transaction and the relationship between the defendants, as well as the legal issues regarding their liability are predominating, significant questions in both cases. Both complaints are based on claims of breach of contract and related claims which stem from the same Purchase and Installation Agreement of the subject generator.

The Court finds the cases share common questions of fact or law that are predominating and significant to the litigation, which weighs in favor of transfer and consolidation.

2. Convenience of Parties, Witnesses, and Evidence

Defendant argues GS&F and its witnesses are all located in southern California, over 400 miles away from this Courthouse. It is inconvenient and burdensome for GS&F's witnesses to travel to this Court. (Oppo at p. 6: 8-10.)

Plaintiff contends that although, Defendant, GS&F, Inc. is headquartered in San Bernardino County, mostly all the evidence – including the Generator at issue in both these cases – is in Richmond, California within Contra Costa County. (Motion at p. 6: 27-28.) The Agreement required performance in Contra Costa County, and permitting by local and state agencies located in Contra Costa County is central to both cases. Documentary evidence and nonparty witnesses are also concentrated in this county. (Reply at p. 3: 20-23.) Defendant's reliance on the location of its own witnesses merely repackages venue arguments, which are irrelevant for this motion. (Keenan, supra, 111 Cal.App.3d at pp. 340–342.)

On balance, the convenience of the parties, witnesses, and counsel, weigh in favor of transfer and consolidation. (Cal. R. Ct., rule 3.300(d)(3).)

3. Relative Development of the Actions

The Contra Costa case was filed on 12/04/2023. The written discovery is complete. The settlement conference is set on 04/02/2026, the issue conference is set on 05/07/2026, and the jury trial is set on 06/01/2026. The San Bernardino Case was filed on 12/09/2024, discovery is ongoing, and the trial setting conference is set on 05/27/2026. (Oppo at p. 6: 12-14.)

Defendant argues that to coordinate the two cases, it is essential to vacate the dates for issue

conference and trial in this case and the date for trial setting conference in San Bernardino Case. Since the discovery in the San Bernardino case has not completed, Reimagine is asking to transfer the entire load of the San Bernardino Case to this case and to restart the trial setting anew. Calif. Rule of Court 3.521(d) provides, “The imminence of a trial in any action otherwise appropriate for coordination may be a ground for summary denial of a petition for coordination, in whole or in part.” (Oppo at p. 6: 16-21.)

Plaintiff contends although the Contra Costa action is further along procedurally, this factor does not defeat coordination. Section 404.1 expressly contemplates coordination of actions at different stages, and the coordination court has broad authority to manage scheduling and discovery to avoid inefficiency. The alternative, parallel litigation in two counties, guarantees duplication. (Reply at pp. 3-4.)

Although there is a pending trial date five months away, Plaintiff has chosen to deal with what comes with coordination and transfer of the San Bernardino case to the Contra Costa Case. However, this may cause delay to the Contra Costa County trial date. The relative development of the actions weighs against transfer and consolidation.

4. Judicial Economy and Efficient Use of Court Resources

Defendant argues there is no efficiency by transferring the San Bernardino Case to this Court. The net effect is to transfer the administration of the San Bernardino Case to this Court because the gravamen of the San Bernardino Case is the fraud scheme of Lee, the breach of an oral agreement, and the unfair business practice of Lee. On the other hand, the gravamen of this case is the alleged breach of a written agreement. (Oppo at p. 6: 22-26.)

Plaintiff contends absent coordination, two courts will be required to interpret the same Agreement, evaluate the same permitting contingency, and adjudicate overlapping claims for damages and equitable relief. Coordination promotes efficient utilization of judicial facilities and manpower and avoids redundant proceedings. (Reply at p. 4: 4-7; citing CCP § 404.1.)

California courts have repeatedly recognized that avoiding duplication and waste of judicial resources is a central purpose of coordination. (See *McGhan Medical Corp. v. Superior Court* (1992) 11 Cal.App.4th 804, 812.)

The two cases arise out of the same accident. Efficient utilization of judicial facilities and staff resources is promoted by having both cases in a single superior court. The efficient utilization of judicial facilities and staff resources, (Cal. R. Ct., rule 3.300(d)(5)), strongly weighs in favor of transfer and consolidation.

5. Risk of Inconsistent Rulings

Defendant argues there is no such risk. In this case, the ruling is based on the alleged breach of a written agreement. In the San Bernardino Case, the ruling is based on fraud in the context of an oral agreement. Since this case is far advanced procedurally, for argument’s sake, if there is any ruling that is applicable to the San Bernardino Case, Reimagine’s wise counsel is anticipated to ask the San Bernardino Court to apply it to the San Bernardino Case. (Oppo at pp. 6-7.)

Plaintiff contends without coordination, inconsistent rulings on contract interpretation, performance obligations, rescission, and restitution are not speculative; they are likely. The avoidance of inconsistent rulings is a core statutory objective of coordination. (Reply at p. 4: 12-15; citing CCP § 404.1; *Keenan*, supra, 111 Cal.App.3d at p. 340-342.)

The Court also considers "[t]he disadvantages of duplicative and inconsistent rulings, orders, or judgments." (Cal. R. Ct., rule 3.500(d)(7).) The two cases arise out of the same accident. Because each has raised claims sounding in breach of contract, there will be an opportunity for inconsistent or duplicative rulings if the two cases remain pending in separate superior courts. Duplicate proceedings waste judicial resources and inconsistent rulings, particularly regarding discovery, could result in significant confusion and protracted motion practice. Moreover, inconsistent judgments regarding the defendants' liability for the same incident must be avoided. The Court finds the disadvantages of duplicative and inconsistent rulings, orders, or judgments by having the two cases related to the same accident proceed separately weighs in favor of transfer and consolidation.

6. Likelihood of Settlement

Defendant argues this is another strong factor in favor of denying coordination. (Oppo at p. 7: 5-10.)

Plaintiff contends coordination promotes settlement by creating a unified factual and procedural record and reducing litigation costs. Fragmented proceedings in multiple courts undermine settlement prospects and incentivize tactical behavior, rather than resolution. (Reply at p. 4: 17-20; citing CCP § 404.1.)

This factor weighs in favor of transfer and consolidation.

On balance, the Court finds the relevant factors demonstrate that the ends of justice will be promoted by transfer and consolidation of the two actions in Contra Costa County. Accordingly, the Court orders the San Bernardino Action transferred to the Contra Costa County Superior Court for consolidation with Contra Costa County Case No. C23-03064.

The Court Consolidates the Actions for Trial

Pursuant to Code of Civil Procedure section 403, "[t]he court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing." Section 1048(a) provides "[w]hen actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." The Court consolidates the actions for trial without prejudice to the parties or assigned judicial officer determining that consolidation for all purposes is preferable or, at a later stage in the litigation, that consolidation is no longer appropriate.

Conclusion

For the reasons explained above, Plaintiff's Motion to Transfer for Coordination is GRANTED. Plaintiff shall take all administrative steps necessary to initiate transfer of the San Bernardino Action. Plaintiff to submit a proposed form of order.

Defendant's GS&F Evidentiary Objections to Hayes Declaration

Obj 1: Overruled.

Obj 2: Sustained. (Irrelevant to this motion.)

Obj 3: Sustained. (Irrelevant to this motion.)

Obj 4: Sustained. (Irrelevant to this motion.)

Obj 5: Overruled.

6. 9:00 AM CASE NUMBER: C24-00839
CASE NAME: JESSE MANCUSI SEGURA VS. OSMIN LIZANO SANCHEZ
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: MANCUSI SEGURA, JESSE
TENTATIVE RULING:

Lillian Sedaghat ("Counsel") filed a Motion to be Relieved as Counsel on September 16, 2025 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on February 2, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Jesse Mancusi Segura ("Client").

The supporting declaration filed by Counsel indicates that "[t]here has been an irretrievable break of the attorney-client relationship." See Declaration filed September 16, 2025, ¶2. Counsel's Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

7. 9:00 AM CASE NUMBER: C24-00851
CASE NAME: DANIEL COSTA VS. FADIA SAADEH
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: SAADEH, FADIA
TENTATIVE RULING:

The parties have stipulated to the continuance of this motion. The Court will issue the order resetting the motion.